Republic of the Philippines
OFFICE OF THE CITY MAYOR
City of Davao 410

OFFICE OF THE SANGGUNIANG PANLUNGSOD
RECEIVED
BY:
DATE: 2/9/07
TIME:
CITY OF DAVAO

1st Indorsement
February 9, 2007

Respectfully returned to the Honorable Sangguniang Panlungsod, through Ms. Lolita C. Garcia, Secretary of said Office, Resolution No. 03252-07 and Ordinance No. 0309-07, entitled "An Ordinance Banning Aerial Spraying as an Agricultural Activities by all Agricultural Entities in Davao City," duly approved by the City Mayor.

J. MELCHOR V. QUITAIN
Acting City Administrator and
City Legal Officer

CRO
RELEASED
FEB 09 2007 9:N
DATE TIME INITIAL
FOR: SP

468-1-07

Republic of the Philippines
OFFICE OF THE CITY LEGAL OFFICER
City of Davao
-oOo-

Ref. No._____

SUBJECT: ORDINANCE NO. 0309-07, SERIES OF 2007

2ND INDORSEMENT
February 9, 2007

Respectfully returned to the Office of the City Mayor, through the Office of the City Administrator, both of this city, the above-cited subject with the information that this office finds no legal infirmity in the subject ordinance.

In view of the foregoing, this office recommends the approval of the subject ordinance.

RESPECTFULLY SUBMITTED.

OSMUNDO P. VILLANUEVA, JR.
Acting Asst. City Legal Officer

0309-07/OPVJ

Republic of the Philippines
OFFICE OF THE CITY LEGAL OFFICER
City of Davao
-oOo-

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Acting Asst. City Legal Officer

0309-07/OPVJ

Republika ng Pilipinas
LUNGSOD NG DABAW
TANGGAPAN NG SANGGUNIANG PANLUNGSOD

February 08, 2007
Date

CITY MAYOR'S OFFICE
RECEIVED
FEB 08 2007
TIME
SIGNATURE

HON. RODRIGO R. DUTERTE
City Mayor
City of Davao

Sir:

Pursuant to Sub-section 3, Paragraph C, Section 469, Article One, Title Five, Chapter 3, Book III and Section 54 of Book I Republic Act No. 7160, otherwise known as the Local Government Code of 1991, we are furnishing you a copy of Resolution No. 03252-07 and Ordinance No. 0309-07, Series of 2007 for your appropriate action.

Very truly yours,

LOLITA C. GARCIA
Secretary to the Sangguniang Panlungsod
(City Govt. Dept. Head II)

14th City Council
3rd Regular Session
Series of 2007

Republika ng Pilipinas
SANGGUNIANG PANLUNGSOD
Lungsod ng Dabaw

PRESENT:

Vice Mayor	Luis C. Bonguyan - Presiding Officer
Councilor	Nilo G. Abellera
Councilor	Ma. Belen S. Acosta
Councilor	Victorio S. Advincula, Sr.
Councilor	Wilberto E. Al-ag
Councilor	Dante L. Apostol, Sr.
Councilor	Leonardo R. Avila, III
Councilor	Conrado C. Baluran
Councilor	Gerald B. Bangoy
Councilor	Pilar C. Braga
Councilor	Arnolfo Ricardo B. Cabling
Councilor	Domingo G. L'Dalodo
Councilor	Danilo C. Dayanghirang
Councilor	April Marie C. Dayap
Councilor	Jimmy G. Dureza
Councilor	Emmanuel D. Galicia, Sr.
Councilor	Peter T. Laviña
Councilor	Rene Elias C. Lopez
Councilor	Diosdado Angelo A. Mahipus, Sr.
Councilor	Amilbangsa T. Manding
Councilor	Paz C. Mata
Councilor	Bonifacio E. Militar
Councilor	Nenita R. Orcullo
Councilor	Susan Isabel C. Reta
Councilor	Angela Librado- Trinidad
Councilor	Jose Louie P. Villafuerte
Councilor	Jesus A. Zozobrado, Jr.

ORDINANCE NO. 0309-07 / 01252-07
Series of 2007

AN ORDINANCE BANNING AERIAL SPRAYING AS AN AGRICULTURAL PRACTICE IN ALL AGRICULTURAL ACTIVITIES BY ALL AGRICULTURAL ENTITIES IN DAVAO CITY

Be it enacted by the Sangguniang Panlungsod of Davao City in session assembled that:

SECTION 1. TITLE- This Ordinance shall be known as "An Ordinance Banning Aerial Spraying as an Agricultural Practice in all Agricultural Activities by all Agricultural Entities in Davao City";

SECTION 2. POLICY OF THE CITY- It shall be the policy of the City of Davao to eliminate the method of aerial spraying as an agricultural practice in all agricultural activities by all entities within Davao City;

SECTION 3. DEFINITION OF TERMS:

a. Aerial Spraying- refers to application of substances through the use of aircraft of any form which dispenses the substances in the air.

b. Agricultural Practices- refer to the practices conducted by agricultural entities in relation to their agricultural activities;

c. Agricultural Activities- refer to activities that include, but not limited to, land preparation, seeding, planting, cultivation, harvesting and bagging;

d. Agricultural Entities- refer to persons, natural or juridical, involved in agricultural activities;

e. Buffer Zone- is an identified 30-meter zone within and around the boundaries of agricultural farms/plantations that need special monitoring to avoid or minimize harm to the environment and inhabitants pursuant to policies and guidelines set forth in this Ordinance and other government regulations. It is an area of land that must lie within the property which does not include public lands, public thoroughfares or adjacent private properties. It must be planted with diversified trees that grow taller than what are usually planted and grown in the plantation to protect those within the adjacent fields, neighboring farms, residential area, schools and workplaces;

SECTION 4. SCOPE AND APPLICABILITY- The provisions of this Ordinance shall apply to all agricultural entities within the territorial jurisdiction of Davao City;

SECTION 5. BAN OF AERIAL SPRAYING- A ban on aerial spraying shall be strictly enforced in the territorial jurisdiction of Davao City three (3) months after the effectivity of this Ordinance;

SECTION 6. BUFFER ZONE- Consistent with national legislation and government regulations, all agricultural entities must provide for a thirty (30) meter buffer zone within the boundaries of their agricultural farms/plantations. This buffer zone must be properly identified through Global Positioning System (GPS) survey. A survey plan showing the metes and bounds of each agricultural farm/plantation must be submitted to the City Mayor's Office, with the buffer zone clearly identified therein;

SECTION 7. PENAL PROVISION- Violation of any provision of this Ordinance shall be punished as follows:

a. First Offense: Fine of P5,000.00 and imprisonment of not less than one (1) month but not more than three (3) months;

b. Second Offense: Fine of P5,000.00 and imprisonment of not less than three (3) months but not more than six (6) months and suspension of City-issued permits and licenses for one (1) year;

c. Third Offense: Fine of P5,000.00 and imprisonment of not less than six (6) months but not more than one (1) year and perpetual cancellation of City-issued permits and licenses;

Provided, that in case the violation has been committed by a juridical person, the person in charge of the management thereof shall be held liable;

SECTION 8. REPEALING CLAUSE- Any Ordinance that is contrary to or inconsistent with any of the provisions of this Ordinance shall be deemed amended or repealed accordingly;

SECTION 9. EFFECTIVITY- This Ordinance shall take effect thirty (30) days from its publication in a newspaper of general circulation in Davao City;

ENACTED, January 23, 2007 by a majority vote of all the Members of the Sangguniang Panlungsod.

(Note: Councilors Jimmy G. Dureza, Wilberto E. Al-ag, Ma. Belen S. Acosta and Conrado C. Baluran were out when this ordinance was approved).

CERTIFIED CORRECT:

LOLITA C. GARCIA
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

ATTESTED:

LUIS C. BONGUYAN
Vice Mayor
Presiding Officer
cns/adl

APPROVED: February 9 ,2007

RODRIGO R. DUTERTE
City Mayor

ATTESTED:

WENDEL E. AVISADO
City Administrator